

The Bihar Administrative Tribunal (Repeal) Act, 1990

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[Act 14 of 1990](#)

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[The Bihar Administrative Tribunal \(Repeal\) Act, 1990](#)

[Bihar Act](#)

[14 of 1990](#)

[Published in Bihar Gazette \(extra-ordinary\) dated 13.8.1990.](#)

[An Act to repeal the Bihar Administrative Tribunal Act, 1981.](#)

[Be it enacted by the Legislature of the State of Bihar in the forty-first year of the Republic of India as follows:-](#)

[1.](#)

[Short title and commencement.](#)

[\(1\)](#)

[This Act may be called the Bihar Administrative Tribunal \(Repeal\) Act, 1990.](#)

[\(2\)](#)

It shall come into force with immediate effect.

2.

Repeal of the Bihar Act 38 of 1982.

(1)

The Bihar Administrative Tribunal Act, 1981 (Bihar Act no. 38, 1982) is hereby repealed.

(2)

Notwithstanding such repeal every suit or other proceeding, pending before the Bihar Administrative Tribunal constituted under the Bihar Act No. 38, 1982 immediately before the date of the repeal of the said Act, being a suit or proceeding, the cause of action whereon it is based is such that it would have been, if it had arisen after the said date, within the jurisdiction of Central Administrative Tribunal shall stand transferred to the Bihar Administrative Tribunal when constituted, under sub-section (2) of Section 4 of the Administrative Tribunal Act, 1985 (Act 13 of 1985) on the date notified in the official gazette.

3.

Repeal and Saving.

(1)

The Bihar Administrative Tribunal (Repeal) Ordinance, 1990 (Bihar Ordinance No. 16, 1990) is hereby repealed.

(2)

Notwithstanding such repeal, anything done or any action taken in the exercise of any power conferred by or under the said Ordinance shall be deemed to have been done or taken in exercise of the powers conferred by or under this Act, as if this Act were in force on the day on which such thing or action was done or taken.

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